

September 21, 2026
Dept. 9
Probate Tentative Rulings

16.	26PR0080	ESTATE OF JOEL DAVID PITTO
LETTERS TESTAMENTARY		

Decedent died testate on February 25, 2026, survived by two adult children. Petitioner is decedent's daughter, Jennifer Maestretti. The Petition states Decedent died intestate; however, the Last Will and Testament of Joel Pitto has been lodged with the Court.

The Petition requests full authority under the Independent Administration of Estates Act.

Mary Pitto was named as Executor in the Will. Ms. Maestretti has indicated Ms. Pitto has declined to act as Executor. No declination to serve or nomination has been filed. Petitioner seeks to be appointed as personal representative.

The Will was lodged with the court on May 26, 2026, and is admitted to probate.

The Will waives bond.

There is no Duties/Liabilities statement (DE 147/DE 147s) on file with the court, as required by Probate Code § 8404.

Proof of service of notice of the hearing on the Petition was filed on August 5, 2026; however, the Proof of Service indicates Petitioner mailed the notice herself, rendering service procedurally defective.

Proof of publication was filed on August 21, 2026.

TENTATIVE RULING #16:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, SEPTEMBER 21, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.